

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/08/26 TIME: 1:30 P.M. DEPT: H CASE NO: CIV2101246

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: A. ANDRES

PLAINTIFF: ELIZABETH VARGAS

vs.

DEFENDANT: ANAHIT
GHANBARZADEH ET AL.

NATURE OF PROCEEDINGS: MOTION – COMPEL ARBITRATION

RULING

Cross-Defendant Pius Josphe's ("Joseph") motion to compel arbitration is denied.

FACTUAL AND PROCEDURAL BACKGROUND

This case has been settled for two and a half years. It remains unresolved because of a dispute regarding a lien filed by prior attorney Joseph.

Joseph was the attorney for Plaintiff Elizabeth Vargas ("Vargus") in her action against Defendants Anahit and Ahmed Ghanbarzadeh ("Ghanbarzadeh"). Following settlement negotiations, Joseph filed a motion to be relieved of counsel and on November 8, 2023, the court relieved him as counsel. The following day, on November 9, 2023, Joseph filed an attorney lien. Without counsel, Plaintiff later proceeded to a settlement conference in January 2024 and at that time, she settled the matter for an amount in excess of what was previously negotiated with counsel. Joseph asserts he is entitled 33% of her total settlement amount, or \$36,755.39. He claims he is entitled to compensation for 82.4 hours of work, and costs. Vargas disputes he is owed any fees.

On March 13, 2025, Joseph filed a declaration asserting that the fees in dispute should be interpleaded and set aside subject to dispute arbitration, or released to him. However, there is no evidence that Joseph made any attempts to proceed with arbitration. On October 5, 2025, the Court granted Ghanbarzadeh's motion to file a cross-complaint in interpleader and ordered that \$42,233.88 in undistributed settlement funds be deposited with the court. Joseph now moves to compel arbitration.

The Arbitration Agreement

The arbitration provision at issue which was attached to Joseph's motion is a heavily redacted document in which the only unredacted sentence reads: "In the event that a dispute arises concerning our fees and/or costs, you and we agree that the matter shall be submitted to a binding arbitration pursuant to Local County Bar Association rules."

There is no evidence that Joseph made attempts to submit this matter to arbitration as part of the Marin County Bar Association. Moreover, although Vargas did not submit a sworn declaration, Vargas has repeatedly stated that she has not been able to submit the matter to fee arbitration because the Marin County Bar Association has suspended its program.

The Court shall take judicial notice of the Marin County Bar Association website's statement that the Marin County Bar Association Program is temporarily suspended. ([Marin County Bar Association | Resources | Fee Arbitration](#)) (A court may take judicial notice of facts, not reasonably in dispute. (Evid. Code §452(h).)

LEGAL STANDARD

A party to an arbitration agreement may seek a court order compelling the parties to arbitrate a dispute covered by the agreement. (Code of Civ. Proc. § 1281.) "On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines" that one of certain exceptions applies. (Code of Civ. Proc. § 1281.2.) An opposing party's refusal of arbitration is a prerequisite to bringing a motion to compel arbitration. (*Allstate Insurance Co. v. Gonzalez* (1995) 38 Cal.App.4th 783,789.) A party who unreasonably delays in demanding arbitration may end up waiving that right to arbitration. (*Id.*)

When the parties to an agreement agree to arbitrate disagreements in a particular forum, that forum remains an integral part of the agreement. (*Alan v. Superior Court* (2003) 111 Cal.App.4th 217, 228.) If the forum is unable to hear the dispute, the court lacks authority to appoint a different arbitration and the petition to compel must be denied. (*Martinez v. Master Protection Corp.* (2004) 118 Cal.App.4th 107, 120, (finding trial court lacked authority to appoint an arbitrator after arbitration agreement required that arbitration agreement be conducted pursuant to AAA rules and AAA refused to conduct arbitration.)

ANALYSIS

There has been no showing by Joseph that he has attempted to initiate arbitration, which is a prerequisite to this motion. To the contrary, it appears that Joseph placed his lien on the funds in this case in 2023, and then sat on the dispute. For more than two and a half years, the parties have been unable to finalize the settlement funds because of the lien and there is no evidence that Joseph made any attempts to ask for, or otherwise place the matter in arbitration. A protracted delay in bringing a matter to arbitration may constitute a waiver of any demand for arbitration. (*Allstate Insurance Co. v. Gonzalez* supra 38 Cal.App.4th 783, 793 (citing to *Spear v. California State Auto Assn.* 2 Cal.4th 1035, 1043.)

Moreover, the Marin County Bar Association, which is the forum designated in the unredacted version of the agreement is unable to hear the dispute, which frustrates the thrust of

the agreement. The court cannot compel arbitration in a forum other than what was specified in the agreement.

In light of the above, the Court denies Joseph's motion to compel arbitration.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for July, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjEOSHNgEGafG.1>

Meeting ID: 161 548 7764

Passcode: 502070

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/0826 TIME: 1:30 P.M. DEPT: H CASE NO: CIV2301381

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: A. ANDRES

PLAINTIFF: JOHN MCNEILLY ET AL.	
vs.	
DEFENDANT: FCA US, LLC, ET AL.	

NATURE OF PROCEEDINGS: MOTION – COMPEL – SUPPLEMENTAL

RULING

Appearances required.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

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**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/08/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0001619

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: A. ANDRES

PLAINTIFF: DUSTIN PIPER ET AL.

vs.

DEFENDANT: KEVIN SILVA ET AL.

NATURE OF PROCEEDINGS: MOTION – COMPEL ARBITRATION

RULING

Defendants Kevin and Patricia Silva’s (“the Silvas”) petition to compel arbitration is DENIED.
(Code Civ. Proc., § 1281.2,¹ subd. (c).)

BACKGROUND

This is a real estate fraud matter. Plaintiffs Dustin Piper and Katerina Schreck (“Plaintiffs”) allege that they own 29 Sais Avenue in San Anselmo, which they purchased from the Silvas. (Second Amended Complaint (“SAC”),² ¶¶ 1-2.) According to the SAC, the property had issues with drainage and water intrusion prior to Plaintiffs’ purchase. (*Id.* at ¶ 15.) As part of the transaction, the Silvas allegedly completed a Transfer Disclosure Statement (“TDS”) in which they stated that they were not aware of “flooding, drainage or grading problems” or “major damage to the property and/or any of the structures from fire, earthquake, floods, or landslides.” (*Id.* at ¶ 17.) The Silvas also allegedly told Plaintiffs that before the Silvas bought the property, they had hired a qualified and licensed expert to inspect the drainage system at the property. (*Id.* at ¶ 18.) The Silvas represented that this professional orally recommended certain changes to the drainage system, and that they followed those recommendations. (*Id.* at ¶ 19.)

Plaintiffs allege that on two occasions in 2021, they experienced significant flooding at the property. (SAC, ¶¶ 20-21). In December 2021, Plaintiffs found a report at the property (the “Report”) they allege was never disclosed to them before their purchase. (*Id.* at ¶ 23.) The Report stated that the company that had done the Silvas’ drainage inspection informed the Silvas that “seepage” would “likely enter the lower living areas during periods of heavy rain.” (*Ibid.*) The Report recommended certain repairs to the property and stated that further investigation would be required to determine the scope of repairs needed to the drainage system. (*Id.* at ¶¶ 24-25.)

¹ All undesignated statutory references are to the Code of Civil Procedure.

² The Silvas’ requests for judicial notice are granted. (Evid. Code, § 452, subd. (d).)